OLIVER CHITAMBA
versus
THE MINISTER OF DEFENCE N.O
and
THE DEFENCE FORCES SERVICES COMMISSION
and
ZIMBABWE DEFENCE FORCES COMMANDER N.O
and
AIRFORCE OF ZIMBABWE COMMANDER N.O

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 30 July 2026

Opposed Application

F Choga, for the applicant
P Chibanda, for the respondents

WAMAMBO J:

This is an application for condonation for the late filing of an application for review. The challenge arises from the ending of the applicant's service with the Air Force of Zimbabwe in 2009. The record shows that the applicant first served under a medium engagement as a technician from July 1988 to July 1998, and later served under a further medium engagement as a chaplain from 7 April 1999 to 6 April 2009. The respondents' case in the record is that these were distinct contracts; that the later engagement expired on its own terms; and that the buying back of the earlier pensionable period did not convert the later medium engagement into permanent service. The present condonation proceedings were only launched in 2025.

The point *in limine* is dispositive. Prescription begins to run when the debt is due, that is to say when the claimant has a complete cause of action and the material facts necessary to sue are in place. Courts insist on time limits because they serve finality, legal certainty, and the quality of adjudication. That is the effect of *Road Accident Fund and Another* v *Mdeyide* 2011 (2) SA 26 (CC), *Santam Ltd* v *Ethwar* 1999 (2) SA 244 (SCA).

On the applicant's own papers, he knew by 2009, and certainly no later than the correspondence exchanged in 2010, that the respondents treated his engagement as having ended and rejected his contention that he was entitled to continue in service. Any review-worthy complaint was therefore fully justiciable long ago. A litigant who comes to court some sixteen years after the event does not merely arrive late; he arrives after the law has already drawn the curtain. The point *in limine* must therefore be upheld.

Even if I am wrong on prescription, condonation would still fall to be refused. In Zimbabwe, the controlling considerations are settled: the length of the delay, the explanation for it, the prospects of success, and the prejudice to the other side. Those principles were collected in *Forestry Commission* v *Moyo* 1997 (1) ZLR 254 (S) and reiterated in *Director of Civil Aviation* v *Hall* 1990 (2) ZLR 354 (S) and *Dzvairo* v *Kango Products* (SC 35 of 2017, Where the delay is extreme, the applicant must show cogent prospects of success.

The delay here is not merely inordinate. It is colossal. It is measured not in days or months, but in years upon years. The explanation advanced in the record, namely that the applicant pursued internal representations and correspondence over a long period, may explain his dissatisfaction; it does not excuse a litigant from invoking the court's review jurisdiction timeously. Still less can it cure the fatal absence of prospects. The respondents are plainly entitled to finality.

On the merits there are no prospects of success. The respondents' case, both in the record and in law, is that the applicant's employment ended when the fixed medium engagement expired on 6 April 2009. The record further shows a contemporaneous position taken by the military authorities that discharge followed under the governing regulations and that the purchasing back of previous pensionable service had no effect on the class of engagement. In *Zimbabwe Revenue Authority* v *Mudzimuwaona* 2018 (1) ZLR 159 (S), the Supreme Court affirmed the ordinary principle that a fixed-term contract runs its course and terminates at the end of its stipulated life unless there is some legal basis for renewal or continuation. Nothing in this record establishes such a basis.

The applicant relied on authorities such as *Chiba and 5 Ors* v *Commander- Zimbabwe Defence Forces and Anor* HH 698 of 2021 and *Steenkamp and Ors* v *Edcon Limited* 2016 (3) SA 251 (CC). Those authorities concern, respectively, procedurally unfair administrative discharge and the consequences of dismissals allegedly tainted by statutory non-compliance. They do not assist where, as here, the decisive question is whether there was any dismissal at all, as opposed to the natural expiry of a fixed-term engagement. On the respondents' version,

supported by the contractual and administrative material in the record, the relationship came to an end by operation of law and not by a reviewable act of termination.

I do not overlook that the applicant appears to have pursued the matter for many years and plainly feels aggrieved. But sympathy is not a substitute for legal cause. The law aids the vigilant, not those who, however sincerely, seek to revive a dispute long after its juridical life has expired. There must be an end to litigation; and, in a human sense, there must also be an end to the applicant's long misery. It should now be brought to rest.

Accordingly, it is ordered that:

1. The point *in limine* be and is hereby upheld.
2. The application for condonation for the late filing of the application for review be and is hereby dismissed.
3. The applicant shall pay the costs of suit.

WAMAMBO J……

Lunga Mazikana Attorneys, applicant's legal practitioners
Civil Division, respondents' legal practitioners